

estate shall be “unfettered and unlimited” (*e*); or, “in the legatee’s entire power” (*f*); or be “left to his entire judgment” (*g*); or if he “recommend but do not absolutely enjoin” (*h*); or if a testator give the property to his wife, “well knowing her *sense of justice and love to her family*, and feeling perfect confidence that she will manage the same to the best advantage for the benefit of her children” (*i*); [or “to be used by her in such ways and means as she may *consider best* for her own benefit and that of my three children” (*j*); or “feeling confident that she will act justly to our children in dividing the same when no longer required by her” (*k*); or “in full confidence that she will do what is right as to the disposal thereof between my children, either in her lifetime, or by will after her decease” (*l*);] or “to be at her disposal in any way she may think best for the benefit of herself and family” (*m*); [or “to his wife absolutely, with full power for her to dispose of the same as she may think fit for the benefit of his family, having *full confidence that [*136] she will do so” (*a*); or if he give the residue of his property to legatees, “his desire being that they shall distribute such residue as they *think* will be most agreeable to his wishes” (*b*).]

The construction of the words we are considering never turns on their grammatical import: they may be imperative, but are not necessarily so (*c*). In *Shaw v. Lawless* (*d*), the trustees were recommended to employ a receiver, and Lord

280; and see *Paul v. Compton*, 8 Ves. 380; *Howorth v. Dewell*, 29 Beav. 18; [*Ahearne v. Ahearne*, 9 L. R. Ir. 144.]

(*e*) *Meredith v. Heneage*, 1 Sim. 542; *S. C.* 10 Price, 230; *Hoy v. Master*, 6 Sim. 568.

(*f*) *Eaton v. Watts*, 4 L. R. Eq. 151.

(*g*) *McCormick v. Grogan*, 1 I. R. Eq. 313.

(*h*) *Young v. Martin*, 2 Y. & C. Ch. Ca. 582.

(*i*) *Greene v. Greene*, 3 I. R. Eq. 90, 629.

[(*j*) *M’Alinden v. M’Alinden*, 11 I. R. Eq. 219.]

[(*k*) *Mussoorie Bank v. Raynor*, 7 App. Cas. 321; 9 L. R. Ind. App. 70.]

[(*l*) *Re Adams and the Kensington Vestry*, 24 Ch. D. 199; 27 Ch. D. 394.]

(*m*) *Lambe v. Eames*, 10 L. R. Eq. 267; 6 L. R. Ch. App. 597.

[(*a*) *Re Hutchinson and Tenant*, 8 Ch. D. 540.]

[(*b*) *Stead v. Mellor*, 5 Ch. D. 225.]

(*c*) *Meggison v. Moore*, 2 Ves. jun. 632, *per* Lord Loughborough; and see *Johnston v. Rowlands*, 2 De G. & Sm. 385.

(*d*) *Il. & G. t. Sugden*, 154; 5 Cl. & Fin. 129; *Il. & G. t. Plunket*, 559.